

26PSCV00063 26PSCV00063

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-09-24

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Case Number: 26PSCV00063 Hearing Date: September 24, 2026 Dept: 6

CASE

NAME: Mandy

Marie Zuniga v. General Motors LLC

Plaintiff's

Motion for Attorney Fees, Costs and Expenses

TENTATIVE

RULING

The Court GRANTS Plaintiff's Motion for Attorney Fees, Costs and Expenses in the amount of \$14,624.71, including \$14,015.00 in attorney fees and \$609.71 in costs.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a Song-Beverly action. On January 7, 2026, plaintiff Mandy Marie Zuniga (Plaintiff) filed this action against defendant General Motors LLC (Defendant) and Does 1-100, alleging causes of action for breach of implied warranty, breach of express warranty, violation of the Song Beverly [sic] Consumer Warranty Act, and violation of California Civil Code section 1793.2(b).

On August 25, 2026, Plaintiff moved for attorney fees, costs, and expenses. On September 11, 2026, Defendant opposed the motion. On September 14, 2026, Plaintiff replied to Defendant's opposition.

LEGAL

STANDARD

“The following items are allowable

as costs under Section 1032:... (10) Attorney's fees, when authorized by any of the following: (A) Contract. (B) Statute. (C) Law.” (Code Civ. Proc., § 1033.5, subd. (a)(10).) “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).)

The party seeking fees and costs

bears the burden to show “the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount.” (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.) To satisfy this burden, evidence and descriptions of billable tasks must be presented in sufficient detail, enabling the court to evaluate whether the case was overstaffed, the time attorneys spent on specific claims, and the reasonableness of the hours expended. (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 486-487.)

“A trial court assessing attorney

fees begins with a touchstone or lodestar figure, based on the ‘careful compilation of the time spent and reasonable hourly compensation of each attorney... involved in the presentation of the case.” (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) “The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. [Citation.] The court may also consider whether the amount requested is based upon unnecessary or duplicative work. [Citation.]” (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

“The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom [citation], and this includes the determination of the hourly rate that will be used in the lodestar calculus. [Citation.]” (569 E. Cnty.

Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 436-437.)

A verified fee bill is prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.)

PRELIMINARY ISSUES

Defendant's opposition quotes Missouri v. Jenkins by Agyei (1989) 491 U.S. 274 as stating that "purely clerical or secretarial tasks should not be billed ...regardless of who performs them," omitting the words "at a paralegal rate." (Opp., 5:26-28.) The omission makes the quotation sound broader than it is. The Court identified this same omission by the same firm in Baranes v. General Motors LLC, SCLAC No. 26PSCV00003 (8/20/26), and admonished counsel to quote authority accurately.

DISCUSSION

Summary of Arguments

Plaintiff

seeks \$19,136.50 in attorney fees and \$609.71 in costs, for a total of \$19,746.21, as the prevailing buyer under Civil Code section 1794, subdivision (d), following her acceptance of Defendant's section 998 offer for a \$73,000 repurchase that designated her the prevailing party. Plaintiff contends the lodestar of 41.6 hours expended plus 2.8 reasonably anticipated hours across four timekeepers, at rates of \$350.00 to \$495.00, is reasonable, non-duplicative, and supported by verified contemporaneous billing records that constitute prima facie evidence the time was necessarily incurred. Plaintiff argues the requested rates are within prevailing community rates and have been approved by other California courts, and that the fee need not be proportionate to the recovery. Plaintiff characterizes the matter as genuinely litigated work — vehicle-specific investigation, review of Defendant's production including 24 recorded calls, deposition preparation, and the section 998 analysis — driven in part by Defendant's own conduct. Plaintiff seeks the lodestar only, with no multiplier.

In

opposition, Defendant argues the request is patently unreasonable for a straightforward lemon-law case that was filed, negotiated, and settled in roughly five months without formal discovery, depositions taken, motions, expert work, or trial preparation, consistent with the streamlining intent of Assembly Bill 1755. Defendant contends a line-by-line review shows that 28.9 of the billed hours were not reasonably or actually incurred, and identifies specific categories for reduction: anticipated time, excessive intake and pre-litigation tasks, administrative and clerical work, cancelled-deposition preparation, document-production review, the templated fee motion, initial disclosures, review of Defendant's standard answer, and redundant client communications. Defendant argues that Plaintiff's counsel's heavy reliance on templates shows the professed hours were not performed, and that clerical and "cost of doing business" tasks are not compensable. Defendant objects to the 2.8 anticipated hours as speculative and untethered to "actual time expended" under section 1794, subdivision (d). Defendant requests that the award be reduced to no more than \$6,452.75 in fees and \$609.71 in costs, a total of \$7,062.46, and states it does not challenge the costs.

In

reply, Plaintiff argues Defendant failed to carry its burden to identify specific objectionable entries with supporting evidence, noting that Defendant's opposition repeatedly cites a "Declaration of Ryan Kay" that was never filed. Plaintiff contends Defendant announced a rate challenge in its introduction but never developed one, proposed no alternative rate, and in fact asked that work be compensated at counsel's own \$350 rate. Plaintiff argues Defendant's largest requested reductions are unsupported — that reviewing 810 pages and 113 minutes of audio in 1.5 hours is an arithmetic impossibility, and that Defendant's intake reduction counts time marked "NOT CHARGED" and billed at \$0. Plaintiff maintains that the work Defendant labels excessive was generated by Defendant's own conduct, including the deposition Defendant noticed, kept on calendar, and cancelled the night before, and that AB 1755 compressed the timeline but did not narrow section 1794, subdivision (d), or reduce the compensable work.

Analysis

Prevailing

Parties

There is no dispute that Plaintiff is the prevailing party and therefore entitled to recover attorney fees and costs. The parties' settlement agreement provides that such fees and costs may be determined by way of a noticed motion. (Geoulla Decl., Ex. 1, ¶ 5; Civ. Code, § 1794, subd. (d).) Defendant's Opposition also tacitly acknowledges Plaintiff is the prevailing party. (See generally Opp.; see also D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].)

Hourly Rates

The Court finds Plaintiff's counsel's hourly rates reasonable for the East Judicial District. "The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom [citation], and this includes the determination of the hourly rate that will be used in the lodestar calculus. [Citation.]" (569 E. Cnty. Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 436-437.) This determination considers the complexity of the case, the quality of services provided, and the attorneys' experience. An award at the rates requested comes with the expectation that the attorneys work in an efficient manner that reflects the elevated premium paid for their services. The Court considers this factor in addressing the reasonableness of the hours expended.

Hours Expended

Plaintiff also provided a verified fee bill, which is prima facie evidence that Plaintiff's fees and costs listed therein were necessarily incurred. (Geoulla Decl., Ex. 2; Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) Defendant therefore bears the burden of challenging the specific portions of the fee bill it contends are improper or unreasonable. (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 564 (Premier [burden is on challenging party to point to specific items challenged with sufficient argument and citations to the evidence, and failure to raise specific challenges in the trial court forfeits the claim on appeal].) Defendant's opposition disputes various charges.

The Court finds Plaintiff's claimed

fees somewhat excessive. This case settled within approximately six months of it being initiated and contains no motion practice other than this motion. Moreover, there was nothing particularly complex or unique about this case. The issues involved were applicable to other consumers' vehicles, thereby triggering economies of scale in terms of Plaintiff's counsel's efficiency in litigating this type of lemon law case. Litigating this matter "should not have required anything more than [a] slight factual modification to [an] existing boilerplate." (See *Mikhaelipoor v. BMW of N. Am., LLC* (2020) 48 Cal.App.5th 240, 250.)

In light of the foregoing discussion and in view of the totality of the circumstances, the Court finds that the total amount of reasonable attorney fees in this case, using a lodestar methodology, is as follows:

1. Ryan A.

Youabian = 13.0 hours at \$495.00 an hour for a subtotal of \$6,435.00;

2. Bryan Geoulla

= 6.5 hours, including 2.5 hours for reviewing and responding to Defendant's opposition and appearing at the hearing, at \$450.00 an hour for a subtotal of \$2,925.00;

3. Michael

Josephson = .7 hours at \$400.00 an hour for a subtotal of \$280.00;

4. Michael

Josephson = 3.5 hours at \$350.00 an hour for a subtotal of \$1,225.00; and

5. Erik

Khovorsky = 9.0 hours at \$350.00 an hour for a subtotal of \$3,150.00

6. Total

Attorney Fees = \$14,015.00

The Court finds this to be the reasonable amount billed for all tasks in this matter.

Costs and
Expenses

The Court finds Plaintiff's claimed costs in the amount of \$609.71

to be proper. (Memorandum of Costs (8/25/26).) Defendant did not move to strike or otherwise dispute Plaintiff's claimed costs, and in fact requested the Court include those costs in Plaintiff's award. (Opp., 9:2-4; Cal. Rules of Court, rule 3.1700.)

CONCLUSION

The Court GRANTS Plaintiff's Motion for Attorney Fees, Costs and Expenses in the amount of \$14,624.71, including \$14,015.00 in attorney fees and \$609.71 in costs.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.